

25 Cents

December 1926

THE RED BOOK

M A G A Z I N E

Edna Crompton —

Today's
Morals
as revealed to
Judge Ben B.
Lindsey

Mrs. Philip
Lydig on
Frauds of
Smart Society

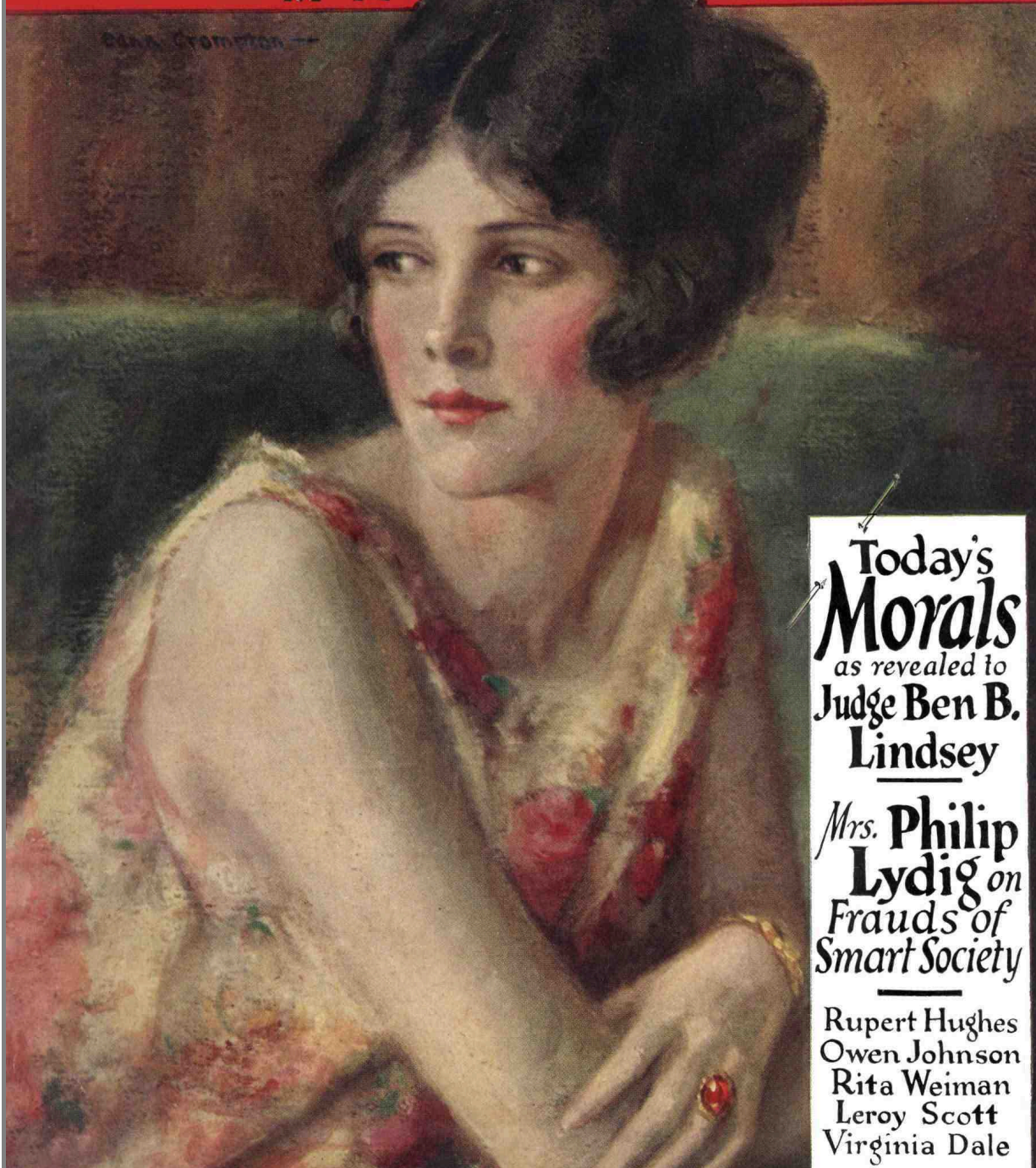
Rupert Hughes
Owen Johnson
Rita Weiman
Leroy Scott
Virginia Dale

25 Cents

December 1926

THE RED BOOK

M A G A Z I N E



Today's
Morals
as revealed to
Judge Ben B.
Lindsey

Mrs. Philip
Lydig on
Frauds of
Smart Society

Rupert Hughes
Owen Johnson
Rita Weiman
Leroy Scott
Virginia Dale

The Project Gutenberg eBook of Exiles of the sky

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Exiles of the sky

Author: Samuel Spewack

Illustrator: Rico Tomaso

Release date: July 21, 2023 [eBook #71237]

Language: English

Original publication: United States: The Consolidated Magazines Corporation, 1926

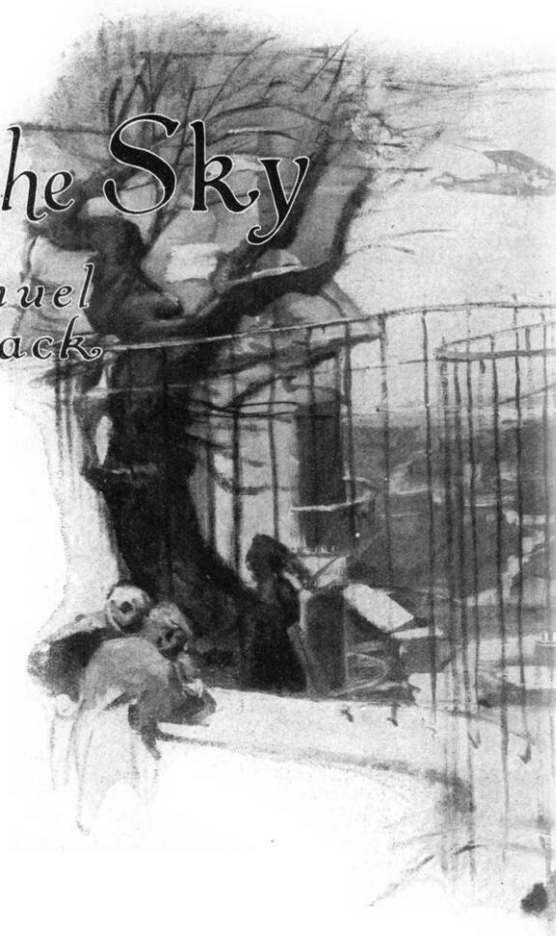
Other information and formats: www.gutenberg.org/ebooks/71237

Credits: Roger Frank

*** START OF THE PROJECT GUTENBERG EBOOK EXILES OF THE
SKY ***

Exiles of the Sky

By Samuel
Spewack



EXILES OF THE SKY

By Samuel Spewack

The man who writes this vivid tale of a pilot in the commercial air service of Europe today knows the scenes of which he writes and the spirit of the people who inhabit them, for, since the war, he has been one of the most active of all the American correspondents in Germany and Russia.

He walked unseeing into the Tiergarten. It was winter—the sunless winter of Berlin, when trees sway like despairing skeletons praying to the wind for snow to cover their bones.

The man pressed the collar of his sheepskin coat closer to his throat, shivering not with cold but with an aching sense of the world's injustice to man—to himself. He was dazed with constant rehearsing of the scene that had taken place in the director's office only half an hour ago. The scene itself had taken but a few minutes. Directors of passenger airplane services have very little time to waste, their secretaries will tell you.

It hadn't hurt so much until the director, big-jowled and thin-lipped, had taken up the red pencil and drawn a brutal line through the name: *Vladimir Uspensky*.

"We have no use for pilots who crash," the director had shouted, but those words had not hurt.

That ruthless scrape of the red pencil through his name *had* hurt. If it had been a blade tearing through his flesh, the pain could not have been more intense. Why hadn't the director put him up against the wall and shot him? That's what they did to soldiers who faltered. But shooting was an act of mercy compared to that red line.

True, he had crashed. But he had never crashed before. Why couldn't the director give him a second chance? Bookkeepers, captains of industry, doctors, editors and statesmen err, and are forgiven. And other pilots had crashed. Why, that Westphalian pilot had had two crashes and had not been dismissed. If only that little cowardly merchant had not complained! But

who would have thought that he would? Instead of commending him for his skill and quick wit in preventing their all being crushed to dust, that damned little merchant had testified, unsolicited, that the pilot had had two glasses of vodka in quick succession in the flying-field waiting-room at Reval.

The wretched man began mumbling to himself as he plunged deeper into the park.

Yes, he had had two drinks. But a man could not get drunk on two glasses of vodka, particularly a Russian. He had crashed because the cooler had sprung a leak. The motor had stopped. But he had glided to earth. Was this not proof enough that he was sober? And the plane was not even damaged. Not even a scratch on her wings. And he had never had a crash before. He'd asked the director that, but the director had been too busy finding the red pencil to answer. Well, had he?

No. Never. Never! Nobody could say that Vladimir Uspensky had ever had a crash before.

Consumed by his misery, the man looked neither to right nor left. Yes, he had had two drinks.

"And after four years of service with us, are you still unacquainted with our regulations?" the director had asked sarcastically.

"And dumb beast that I am, I couldn't even answer him," Vladimir remembered bitterly.

Yes, he had taken two drinks. He'd taken them, too, because he was coming back to Berlin, when he longed with all his being for Moscow.

Vladimir Uspensky hated Berlin. It was such an ugly city, with a soul as cold and sterile as the Prussian soil upon which it squats. It was a city where men shouted and women whined, where the purple apoplexy of the struggle against defeat had displaced the grace of living. Uspensky knew all the capitals. For him New York had movement, Paris beauty, London age. But there was only one city that he loved, and that was Moscow. Loverlike, he credited to that blood-stained snow-mound the movement of New York, the beauty of Paris, the age and dignity of London.

It had been a sudden pang of homesickness, and had come upon him unawares. Vladimir had never before let homesickness interfere with the business of flying. But this time—it had caught him like the springtime desire of a young girl to be loved....

A park bench by a still, dirt-screened pond greeted the unhappy man icily. He had no sooner fallen onto it when overhead a metal bird hummed in flight. He looked up—a Fokker monoplane, blue and brown. He knew it. He knew the pilot. He had often saluted him in the air when their paths crossed between Amsterdam and Berlin.

The thundering thing came nearer, taunting the discredited pilot on the bench. “You, there,” it roared, “you can never fly again.”

Vladimir rose unsteadily to his feet. No—he could never fly again.

Suddenly he buried his head in his coat, and cried. An old derelict shuffling up looked at him anxiously.

“Are you sick?” the stranger quavered at Vladimir.

Vladimir looked back quickly.

“No, no,” he coughed, clearing his throat. “I am not sick. Not sick.”



No—he could never fly again. “Are you sick?” the stranger quavered.

The derelict hurried on. The metal bird had faded in the gray sky. One could hear only a thin, persistent thrumming. Vladimir put his hands to his ears.

He walked out of the park, through the rectangular streets that seemed to squeeze him like a giant maw. He paused at a dim Weinstube, hesitated and then entered. The plump barmaid brought him a vodka. He looked at it, and then at her. She edged away. His eyes frightened her.

Vladimir brushed the glass from the table. The crash startled the proprietor, who came panting from the kitchen.

“Another crash!” shouted Vladimir. “Do you see it? I am that glass. I crashed too.”

“Crazy Russian,” growled the proprietor. “Pay and get out.”

“You think I am crazy? Perhaps you think I am drunk too. It is your city that crashed me, your damn’ city without a sun, without a soul. I hate it. I hate you—all of you. You robbed me of my plane. You robbed me of my life—”

“If you don’t get out this minute, I’ll call the police.” The proprietor moved to the door.

Vladimir surrendered. He threw a two-mark note upon the bar.

He lumbered up the avenue of commercialized gayety—Kurfürstendamm—where even in the mottled afternoon painted women sat together in the huge cafes, waiting. Orchestras played with Teutonic discipline one-year-old jazz, born of a primitive people and now, robbed of its abandonment, employed to stimulate these human automatons. Vladimir did not see, nor hear. He walked on.

Toward evening he found himself at Templehof—the flying field. What was he doing here? This patch of green in the wilderness of factory lands, where the flight of men began and ended, was his no longer. What matter if he knew it from the sky as other men know a beloved face? He was now an exile from the sky and from this field, which brought men to the sky. This field to him had become home when revolution had exiled him from his home. And now he had lost this too.

Even the night watchman—silly doddering old fool—had his place here. But Vladimir Uspensky, proudest of pilots, had none. Probably the night watchman knew of his disgrace, and would pity him. What irony! But wait. Perhaps he did not know. They would not tell him until the next day. Then

The plan was born.

He slept in a draughty little hotel near the field. He rose at four. It was still dark. He dressed slowly, paid his bill, and found his way to the hangars.

The night watchman greeted him with customary obsequiousness. He did not know.

“I came out early to tune up the machine myself,” explained Vladimir. “I don’t trust these mechanics any more.”

With the aid of the night watchman he rolled the machine out of the hangar, and started the engine. Vladimir listened carefully to the jangled symphony of the motor, noting beat and pitch with musicianly intensity. He was satisfied. The motor sang gloriously.

And the sole purpose of his flight was to convince the sneering director that Vladimir Uspensky was not through, that Vladimir Uspensky had been grossly libeled, that Vladimir Uspensky was not a drunkard but a careful, competent pilot.

He stepped into his flying suit, adjusted his helmet and his goggles, saw that the rolling map was fixed in its proper place. He looked at his wrist-watch. In another hour flying officials would begin to descend upon the field. He must be off. He clambered up the metal rests of the wings and strapped himself into the pilot’s seat.

His eyes sparkled exultingly as he bent low. The plane rattled over the field, faster and faster. He turned. The motor subsided, and then leaped into hammering life again. He began to rise over the hangars, higher and higher. A thin morning sun melted the surrounding haze, and the mist on his windshield and goggles. Below, factory chimneys yawned, and the trains in the railroad yards turned and twisted like black snakes.

It was good to be in the air again! How he would laugh at them when he returned! Show them he had been to Danzig and back again, in schedule time, without a scratch. Could a drunkard do that?

East he flew, over the pines of Brandenburg, over the marshes beside the hard-won little fields and the precise farmhouses. He knew this land. He slipped lower in his seat and gave himself up to the blended roar of wind, motor and propellers, and the gentle heave of the metal bird. Thus for two hours.

He craned his neck over the wind-shield. He did not like the sky, nor the clouds, nor the fog spreading over the earth. But fortune was with him today. Fortune must be with him today. He would show them that even a storm was but a slight obstacle to Vladimir Uspensky. On, on! The speedometer quivered at one hundred and ten. The plane shook as if in fever. He sat bolt upright.

The wind charged him from the side, and it took all his strength to right the plane.

Now the fog choked him in gray darkness, and he had only instinct and a pathetically inadequate compass as his guide. A strange fear gripped him in this mist-woven wilderness of sky. Suddenly the image of the director drawing the red pencil through his name reappeared.... But the fat-jowled, thin-lipped face had no eyes—just sockets.

To the fear-crazed pilot, this was the writing in the sky—the red pencil was Death and the eyeless face was Fate.

“A man can fight Death—but not Fate,” shouted Vladimir, but no one heard. And no one saw when, slumping to his knees, he clutched the control lever as if in prayer. The plane with its unconscious burden crazily sank.

He opened his eyes in a snug attic with a roof so low that he could touch it with his hand, if he felt like trying. But Vladimir didn’t feel like trying. Didn’t feel like moving at all. Underneath the warm feather-bed, his body lay stiffly tired. But his eyes roved fearfully from wooden ceiling to whitewashed walls and unpainted door. No thought disturbed the vacancy of his gaze.

Suddenly his ears caught the steady *clop-clop* of some one ascending stairs, and then the door opened and an old peasant with a long pipe entered. He took a deep puff and nodded several times. “How do you feel?” he asked.

Vladimir recognized it with difficulty as the German spoken in bleak Pomerania.

“Feeling better?” the old fellow repeated, louder and with a hint of irritation.

Vladimir nodded.

The old man regarded him for a moment, then puffed and spoke again:

“You’re the second one that’s dropped outside our door within the past two years,” he announced. “That girl who found you was the first. She didn’t fly to us. My wife found her exactly where that girl found you.”

The old peasant looked at the pilot, sucked his pipe a moment, and turned to the door.

“That girl covered your bird with straw,” he said, and left.

Covered his bird with straw? Why? The plane was probably smashed to bits....

“Excuse me for bringing my dirty shoes and your milk in at one time.”

In amazement Vladimir looked at the barefooted peasant girl who had entered, for she spoke Russian, and a Russian with the accent of a *grande dame* of Petrograd. In one hand she held a pair of wooden shoes, and in the other a glass of milk. She smiled at him with her lips but not with her eyes.

“I daren’t leave my shoes outside or the dog will run off with them. He’s very strong.” She smiled as she set the *sabots* on the floor and closed the door behind her.

“You are Russian?” Vladimir asked unsteadily.

“Yes, I’m Russian,” the girl answered as she approached his bed. “I knew you were because when I found you, you cried out in Russian. And now no more questions. Drink your milk.”

The girl lifted the pilot’s head and supported it with a strong right hand, while with the left she held the glass against his mouth. The sick man drank obediently, but his questioning eyes never left her face.

It was a lovely face with dark eyes that brought back to Vladimir the sound of silver laughter, of troika bells, and the sight of gilt domes, the blue sky and snow-covered streets of Moscow.

“Most of us went to Paris, but I chose Pomerania,” the girl explained easily. “And now sleep. Tomorrow we’ll talk.”

But the next day, the girl didn’t stop to talk, despite her promise. She placed Vladimir’s food on a stool near his bed and left, smiling her lip smile, as she slipped her feet into the wooden shoes at the door.

When he finished his food, he felt so much stronger that he arose and dressed. He found his clothes neatly folded on a shelf. Cautiously he stretched arms and legs and twisted his neck about. Miracle of miracles, he was all sound and unhurt. A deep, grateful sigh burst forth unbidden from his heart but died on his lips as that lost look which had shrouded his eyes in the fog crept back.

“What is going to happen to me?” he cried out in agony. “I’m afraid—again. Why couldn’t I die when I crashed?”

His eyes suddenly caught the glint of a razor blade on the floor. Why, it was his own razor blade, evidently dropped from his pocket when he had

dressed. His teeth bit into his indrawn lips as he reached for it. He would show them if he was afraid!

There was a sudden knock at the door, and the peasant girl entered.

“What!” she cried. “Up and dressed! Then you can have supper with us below. You’d better go down now. Food’s on the table.”

The razor slid from Vladimir’s fingers and buried itself in the bed.

The man felt curiously ashamed of himself. Had she seen the razor?

He looked up anxiously at the girl. But her back was turned to him as she adjusted the little curtain to the tiny window. She had evidently not seen. He felt relieved.

“Thank you,” he said.

“Better hurry,” the girl advised, without turning around. “You’ll find soap and towel near the pump outside.”

When he had gone, the girl reached for the razor in the bed and hid it under a loose plank in the floor, for she had seen.

A moment later Vladimir, facing the old Pomeranian peasant and his equally ancient wife, heard the light *pat-pat* of the Russian girl’s bare feet.

The meal of black bread and thick potato soup was eaten in silence. At its close the old peasant offered Vladimir a puff at his pipe, but Vladimir refused, remarking that he preferred a cigarette. The old peasant woman disappeared, and the girl in the far corner of the kitchen washed the dishes, putting them on the stove ledge to dry.

Having finished his smoke, the old man rose.

“There’s still enough light for you to look around,” he suggested. “My pigs are the best in all Pomerania. You must see them.”

As Vladimir followed his host out, the girl called out in Russian:

“A few feet away from the barn is your plane.”

When Vladimir did not return with the old peasant a half-hour later, the girl threw a shawl over her shoulders and ran out into the field. It was now completely dark. With difficulty she made out his figure, dim and uncertain in the distance.

She continued to run until she was a few feet away from him, and then she slowed down into a leisurely walk.

“Your plane all right?” she asked.

But there was no answer.

The girl's hands felt for the man's face.

"Why do you cry?" she demanded as her hands fell to her sides.

"Because I can never fly again." The man's answer was low and bitter.

"And why not?"

"You felt the answer with your hands. Can a man fly who bursts into tears like a baby?"

"You are afraid of something," the girl said.

"I'm afraid of myself," Vladimir cried. That confession wrested from him by the impersonal sympathy of the girl's voice now made him long to pour forth words of explanation, of supposition, of self-justification. But he found he could not, for his cracked and trembling voice hinted at a renewed outburst of self-pity.

"Did you ever crash before?" The girl's voice was still gently impersonal.

The man winced.

"Yes," he replied. "But only once before."

And in a voice as shrill as a girl's he told her of the little merchant, the director, the dismissal—everything!

"I stole the plane to prove to them that I could fly her at her record speed and bring her back safely," Vladimir concluded bitterly. "And what did I do? I crashed again. I am a wreck—a ruin. I have no right to live."

There was no murmur of pity, no cry of scorn from the girl beside him. She stood there silent, almost lost in the darkness.

"You see you turn away from me," Vladimir was moved to cry out.

There was a long silence; then the girl spoke. "You have suffered," she said. "You say you are wrecked, you are ruined. Do you think you know what it is to be wrecked? To be ruined? You say you can no longer fly again—the sky is barred to cowards.... Do you know that I too once flew? Not in a plane, but in dreams. I flew so high I never touched earth—until the revolution came. My father died. My mother followed him. My brother was killed. And I ran away.

"I should never have run away. Hunger, death—what does it matter? A Russian should never desert Russia. I ran away. I told you before that instead of fleeing to Paris, I made my way here. That was a lie. I wanted to get to Paris, but my money gave out when I reached Berlin. You've walked in the Tiergarten on a muggy November day. So have I. Not just one day.

One night, I slept on a bench there. The next morning when a man spoke to me on Friedrich Strasse, I went with him. He fed me. He maintained me for a month, and then he brought me to a friend of his, the proprietor of a night club on Kurfürstendamm. The first evening I took my place at the table assigned me was also a birthday for me—my nineteenth. That is how I celebrated.”



“The first evening I took my place at the table assigned me, was also a birthday for me—my nineteenth.”

Vladimir wanted to cry out for the girl to stop, but his voice stuck in his throat.

The colorless voice suddenly broke.

“Don’t cry,” the man begged.

“I’m not crying,” the girl replied. “I think all my tears dried up inside of me when I sat at the table in that red plush seat. Three months after my horrible birthday celebration, I woke up in my room with the noon sun on my face. I’d forgotten to draw the curtains the night before. I reached for my hand mirror and looked at myself, and then I got down on my knees and prayed.

“In the afternoon I sold my three evening dresses, the cheap perfume and the imitation jewelry. I bought a pair of heavy shoes, the dress I have on now, and a warm jacket—all secondhand. I walked to the railroad station and looked on the board for the list of departing trains. A train for Pomerania was leaving within ten minutes. I showed the ticket-agent the money I had left and asked how far that would take me. He sold me a ticket to this village. With all my money gone, I could not turn back, you see. These peasants took me in. They are not our people. I cannot talk with them. But I have enough to eat and I am warm.”

Suddenly Vladimir found a limp square of paper slipped into his hand as the girl whispered:

“For remembrance from one who can never fly again, to you who tomorrow return to the sky.”

And she was gone.

Vladimir tried to follow, but his feet were unused to the stubble of the field. By the time he reached the peasant’s house, there was no sign of the girl.

By the light of the lamp Vladimir looked hard and almost grimly at the faded snapshot of a laughing girl in white. What the girl must have been at fourteen—when she had flown.

Reverently, Vladimir, to whom the wrecked woman had given back his manhood—reverently, he brought the snapshot to his lips.

He rose with the dawn the next morning and hurried down. The girl was already in the kitchen. To his greeting, she replied in a murmur and avoided his eyes. She handed him his coffee in silence.

When he had finished, he held out his hand.

“Good-by,” he said.

She extended hers timidly. Her hand trembled.

“You’re flying back?” she asked.

“Yes, back to Berlin,” he said, taking her hand in his.

“They may arrest you for stealing the plane.” The girl’s soft dark eyes searched Vladimir’s face anxiously.

“I’ve considered that.” The man nodded gravely. “I shall probably go to prison.” His grip on her hand tightened until it hurt her. “But if I knew you were waiting for me—Tatiana, would you trust yourself to fly with me?”

Their eyes met.

“Yes,” the girl answered.

“It may mean death, if I crash.”

“But you will not crash,” the girl made answer.

Twenty minutes later the aged peasant heard what seemed to him to be the bellow of a released wild beast. He saw the machine skim across the field and soar into the sky until it melted into a gray speck and was lost to sight.

That was two years ago.

Today, should you fly between Moscow and Odessa, you may have for your pilot Vladimir Uspensky, and you could wish for no better. Should you land in Moscow, you may even meet the sky bride, Tatiana.

Transcriber’s Note: This story appeared in the December 1926 issue of the *Red Book Magazine*.

*** END OF THE PROJECT GUTENBERG EBOOK EXILES OF THE
SKY ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.